

TENTATIVE RULING

Yesenia Valdez
v.
Beacon Oral Specialists Management LLC, et al.
26CV001565

Defendants’ Demurrer to Plaintiff’s First Amended Complaint

Hearing Date: July 24, 2026

The demurrer filed by Defendants Beacon Oral Specialists Management LLC and Ali Salehpour (collectively, “Defendants”) to the Third Cause of Action in the First Amended Complaint (“FAC”) of Plaintiff Yesenia Valdez (“Plaintiff”) is **OVERRULED**. Defendants have 10 days from the date of service of the Court’s signed order to answer the FAC. [Cal. Rules of Ct., rule 3.1320, subd. (g).]

Defendants’ request for judicial notice of the Arbitration Agreement is **DENIED** because it has no relevance to the adequacy of the Third Cause of Action. [*National Asian American Coalition v. Newsom* (2019) 33 Cal.App.5th 933, 1002, n. 7 (rejecting judicial notice of irrelevant materials).]

As a result of the Court’s ruling, the Case Management Conference (“CMC”) scheduled for July 28, 2026, is **CONTINUED** to August 25, 2026, at 9:00 a.m. in Department 14. At least 15 days before the next CMC, Plaintiff shall file an amended statement that fully responds to Item 4b by providing the estimated damage amount. If the case is at issue, the Court may set it for trial. Unless necessary, Defendants do not need to file another statement before the next CMC.

Plaintiff shall prepare the Proposed Order consistent with this Tentative Ruling.

Legal Standard.

A demurrer for sufficiency assesses whether the complaint properly states a cause of action. [*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747; Code Civ. Proc. § 430.10, subd. (e).] When courts evaluate demurrers, they interpret the allegations broadly and in context. [*Taylor v. City of Los Angeles Dept. of Water and Power* (2006) 144 Cal.App.4th 1216, 1228.] In a demurrer, defects must be visible on the face of the pleading or by proper judicial notice. [Code Civ. Proc. § 430.30, subd. (a).] A demurrer examines only the pleadings, not the evidence, counsel’s arguments, or external facts. [*SKF Farms v. Superior Court* (1984) 153 Cal.App.3d 902, 905; *Ion Equipment Corp. v. Nelson* (1980) 110 Cal.App.3d 868, 881.]

Discussion.

The FAC’s Third Cause of Action alleges sexual harassment in the workplace. [FAC at ¶¶ 70-80.] A prima facie case of sexual harassment based on a hostile work environment

involves allegations that the plaintiff faced unwelcome harassment that unreasonably disrupted their work by creating an intimidating, hostile, or offensive environment. [*Ortiz v. Dameron Hospital Assn.* (2019) 37 Cal.App.5th 568, 581.] To establish harassment due to a hostile work environment, an employee must show that the conduct was severe or widespread enough to alter the work conditions and make the environment hostile or abusive because of their sex. [*Miller v. Dept. of Corrections* (2005) 36 Cal.4th 446, 462, and authorities cited therein.] The overall work environment should be evaluated in light of all circumstances. [*Ibid.*] Whether the environment is “hostile” or “abusive” can only be determined by examining all relevant factors, including (1) how often discriminatory conduct occurs; (2) how severe it is; (3) whether it involves physical threats, humiliation, or merely offensive comments; and (4) whether it unreasonably affects an employee’s work performance. [*Ibid.* (citing *Harris v. Forklift Systems, Inc.* (1993) 510 U.S. 17, 23).]

Here, Plaintiff alleges sufficient facts in the FAC’s Third Cause of Action to state a prima facie sexual harassment claim based on a hostile work environment. Paragraph 70 of the Third Cause of Action references the preceding paragraphs of the FAC. Paragraphs 14 through 21 of the FAC sufficiently describe conduct that includes repeated comments and actions involving sex or gender, directed at both Plaintiff and other female staff members. Although Defendants attempt to distinguish more direct conduct from conduct directed at others, the law requires an examination of the entire work environment, not just isolated incidents in certain categories. The FAC alleges repeated gender-based hostility, including sexualized comments, intimidation, ridicule, and inappropriate physical conduct occurring over less than a year. Allegations that multiple female employees complained about the same conduct further support the claim. [*Pantoja v. Anton* (2011) 198 Cal.App.4th 87, 114 (“[A] female plaintiff can prevail by showing that the harassment was because of the defendant’s bias against women; she need not show that it was because of the defendant’s sexual interest in women.”); *see also Lyle v. Warner Bros. Television* (2006) 38 Cal.4th 264, 283.] When viewed in the context of the overall circumstances, these allegations sufficiently plead conduct that is severe or pervasive enough to alter the conditions of employment. [See *Miller*, 36 Cal.4th at 462; *Harris*, 510 U.S. at 23.]

At the pleading stage, the Court must accept Plaintiff’s allegations as true and cannot resolve factual disputes or make inferences against the pleader. Because the FAC’s Third Cause of Action now pleads sufficient allegations supporting the sexual harassment claim, the demurrer is **OVERRULED**, and Defendant has 10 days from the date of service of the Notice of the Court’s signed order to answer the FAC. [Cal. Rules of Ct., rule 3.1320, subd. (g).]

NOTE RE TENTATIVE RULING

This tentative ruling becomes the court’s order, and no hearing shall be held unless one of the parties contests it by following Rule 3.1308 of the California Rules of Court and Monterey County Local Rule 7.9. Those parties wishing to present an oral argument must notify all other parties and the Court no later than 4:00 p.m. on the court day before the hearing; otherwise, **NO ORAL ARGUMENT WILL BE PERMITTED, AND THE TENTATIVE RULING WILL BECOME THE ORDER OF THE COURT AND THE HEARING VACATED.** You must

notify the court by [email](#) or by calling the Calendar Department at 831-647-5800, extension 3040, before 4:00 p.m. on the court day before the hearing.